

21STV37592 21STV37592

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C07%2F06%2F2026

Source SHA-256: 0f5f726134153f98c08ce11b219410e7d3422f1d216ac1f3ced69569e1c0f613

Case Number: 21STV37592 Hearing Date: July 6, 2026 Dept: 730

TENTATIVE

The request for default judgment submitted on March 27, 2026 is DENIED for the following reasons:

Plaintiff has not dismissed DOE defendants or Defendant Philip A. Madsen, nor has Plaintiff applied for separate relief as to these other defendants. (CRC 3.1800(a)(7).)

Plaintiff's declaration fails to support the amount of damages requested. Plaintiff's testimony does not address the amount of damages. Plaintiff attaches certain medical records as Exhibits A, B and C but the exhibits are unauthenticated. In addition, Plaintiff's Exhibit A contains a document entitled "Transaction Type Summary" that reflects charges of \$68,536 for services provided between 10/9/19 and 10/15/25. Plaintiff is requesting special damages in the amount of \$69,036, which is more than reflected in the "Transaction Type Summary." Plaintiff's request for special damages is not supported by the evidence.

Plaintiff's general damages are also unsupported by the evidence. Plaintiff is asking \$345,180 in general damages, which is five times her requested special damages. Based on her declaration testimony regarding what occurred and the medical records, the amount of general damages is excessive.

No later than September 1, 2026, Plaintiff is to submit a new default judgment package correcting these defects. Failure to do so may result in the imposition of sanctions, including monetary sanctions and/or dismissal. The OSC re entry of default judgment is continued to September 29, 2026.